

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Olga Bentin	Team: Squad #4	CCRB Case #: 201809503	☒ Force	☐ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 11/06/2018 2:30 AM	Location of Incident: 81st Precinct stationhouse	Precinct: 81	18 Mo. SOL 5/6/2020	EO SOL 12/21/2020	
Date/Time CV Reported Tue, 11/06/2018 10:05 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 11/13/2018 11:06 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Jimmy Romero	05585	962062	081 PCT
2. POM Indervir Singh	13484	963759	081 PCT
3. SGT Forrest Hirsch	01210	941905	INT CIS
4. POM James Mcsherry	27896	942175	081 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Indervir Singh	Force: Police Officer Indervir Singh used physical force against § 87(2)(b) § 87(2)(b)	
B.SGT Forrest Hirsch	Force: Police Officer Forrest Hirsch used physical force against § 87(2)(b) § 87(2)(b)	
C.POM James Mcsherry	Force: Police Officer James Mcsherry used physical force against § 87(2)(b)	
D.POM Jimmy Romero	Force: Police Officer Jimmy Romero used physical force against § 87(2)(b) § 87(2)(b)	

Case Summary

On November 6, 2018, Sgt. Vivian Gavilanes of the 81st Precinct contacted the IAB Command Center and filed this complaint on behalf of a prisoner, § 87(2)(b). On November 13, 2018, this complaint was received at the CCRB. The initial IAB complaint listed § 87(2)(b)'s home address, but not his telephone number.

On November 23, 2018, a LEXIS search for § 87(2)(b) revealed three additional addresses and a telephone number. Between November 26, 2018, and December 10, 2018, a total of five calls were placed to this number. No voice messages were left, because the number was not set up to record any messages.

On November 23, 2018, a CLEAR search for § 87(2)(b) confirmed the LEXIS search results and listed an additional telephone number. On November 26, 2018, a call was placed to this number, and a voice message was left for § 87(2)(b) requesting that he contact the CCRB. On November 28, 2018, a second call was placed to this number. § 87(2)(b)'s mother replied and said that she had no contact information for § 87(2)(b) but promised to forward a message to § 87(2)(b). On December 12, 2018, a third call was placed to § 87(2)(b)'s mother and a voice message was left for § 87(2)(b) and his mother requesting that they contact the CCRB.

On November 26, 2018, a BADS search for § 87(2)(b) confirmed his home address and the telephone number obtained for him during the CLEAR search. It also revealed two additional telephone numbers listed for him in arrest reports from 2016. On November 26, 2018, calls were placed to both numbers and both numbers were not in service.

On November 26, 2018, a COLES search of § 87(2)(b)'s home address did not list any telephone numbers for the residence, nor did it indicate that § 87(2)(b) resided there.

On November 29, 2018, a DHS check for § 87(2)(b) indicated that he exited the NYC Department of Shelter Services in 2015, and his current whereabouts were unknown.

On December 12, 2018, a DMV search for § 87(2)(b) listed his home address as one of the three addresses obtained for him during the LEXIS search.

A review of NYPD documents confirmed § 87(2)(b)'s home address, but did not list any other contact information.

Between November 23, 2018, and December 3, 2018, two please-call letters were mailed to § 87(2)(b) at the address listed for him in the initial IAB complaint. Between December 5, 2018, and December 10, 2018, both letters were returned by USPS as "Unable to Forward." Between November 23, 2018, and December 10, 2018, three please-call letters were mailed to § 87(2)(b) to each of the three addresses obtained for him during the LEXIS search. On December 5, 2018, one of the letters was returned as "Unable to Forward." The remaining letters were not returned by USPS as undelivered.

On December 12, 2018, a NYC DOC search indicated that § 87(2)(b) is not currently incarcerated.

On December 7, 2018, a request for BWC footage returned negative results. Between November 27, 2018, and December 11, 2018, IAB provided the investigation with several video recordings from the 81st Precinct stationhouse, none of which captured the incident. There is no other known source of video evidence.

§ 87(2)(g)

